

23CMCV01819 23CMCV01819

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-08-27

Motion: PLAINTIFF'S MOTION TO SET ASIDE THE JUDGMENT [CCP §§ 473(B), 128(a)] DATE: Augus 27, 2026 TIME: 8:30 A.M.

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=COM%2CE%2C08%2F27%2F2026

Source SHA-256: d503d362705578803132a4dd3033b477bb5cdce601ca185c81842696ea716fa7

Case Number: 23CMCV01819 Hearing Date: August 27, 2026 Dept: E

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL
DISTRICT

JOSE

LUIS JIMINEZ and SULA FREIGHT, INC.,

Plaintiff,

vs.

BRENDA CISNEROS, KRYSTAL

FLORES, ARACELY FLORES, KB ROYAL CO.; AND DOES 1-50 inclusive,

Defendants.

)

)

)

)

)

)

)

)

)

)

)

)

)

CASE

NO: 23CMCV01819

[TENTATIVE] ORDER RE: PLAINTIFF'S MOTION TO
SET ASIDE THE JUDGMENT [CCP §§ 473(B), 128(a)]

DATE: August 27, 2026

TIME: 8:30 A.M.

DEPT.: E

Moving Party: Plaintiff

Jose Luis Jiminez

Responding Parties: Defendants

Brenda Cisneros, Krystal Flores, Araceli Flores (erroneously named as Aracely
Flores), and KB Royal Trucking, LLC (erroneously named as KB Royal Co)

Notice: Ok

Tentative Ruling: Plaintiff's

Motion to Set Aside the Judgment is DENIED.

I.

BACKGROUND

This is an action arising from alleged negligence and breach of contract.

On November 9, 2023, Plaintiffs Jose Luis Jimenez (“Jimenez”) and Sula Freight, Inc. (“Sula”) (collectively, “Plaintiffs”) filed the operative Complaint against Defendants Brenda Cisneros (“Cisneros”), Krystal Flores (“K. Flores”), Araceli Flores (erroneously sued as “Aracely Flores”) (“A. Flores”), and KB Royal Trucking, LLC (erroneously sued as “KB Royal Co., Inc.”) (“KB Royal”) (collectively, “Defendants”). Plaintiffs’ Complaint alleges the following causes of action: (1) Breach of Contract (against Cisneros); (2) Breach of Contract (against K. Flores); (3) Breach of Contract (against A. Flores); (4) General Negligence (against Cisneros, K. Flores, and KB Royal); (5) Intentional Tort (against all Defendants); and (6) Intentional Tort (against all Defendants).

On August 12, 2025, Plaintiffs’ now-former attorney, Marcus Gomez, Esq. (“Gomez”), moved to be relieved as counsel. On September 23, 2025, the Court granted Gomez’s motion to be relieved as counsel. (See Minute Order, 9/23/25.) And on its own motion the Court also continued the hearing on Defendants’ then pending Motion for Summary Judgment or, in the Alternative, Summary Adjudication (the “MSJ/MSA”), which was then scheduled to be heard on October 14, 2025, to January 29, 2026.

On January 29, 2026, the Court heard and partially granted Defendants’ unopposed MSJ/MSA. (See Minute Order, 1/29/26 (the “January 29 Order”).) Defendants’ MSJ/MSA was granted in its entirety as to Defendants A. Flores and K. Flores. (Id.) As to Cisneros, Defendants’ MSJ/MSA was granted as to all except Plaintiff’s Sixth Cause of Action. (Id.)

On July 29, 2026, Jimenez filed the instant Motion to Set Aside the Judgment.

On August 17, 2026, Defendants filed their Opposition.

As of

August 26, 2026, no Reply has been filed.

II.

ANALYSIS

A.

Legal

Standards[1]

1.

Code of

Civil Procedure § 473(b)

Code of Civil Procedure § 473(b)

“provides for both discretionary and mandatory relief. [Citation.]” (Pagnini v. Union Bank, N.A. (2018) 28 Cal.App.5th 298, 302.) An application for relief under this section must be made no more than six months after entry of the judgment, dismissal, order, or other proceeding from which relief is sought, and must be accompanied by an affidavit of fault attesting the mistake, inadvertence, surprise or neglect of the moving party or its attorney. (Code Civ. Proc. § 473(b); English v. IKON Business Solutions (2001) 94 Cal.App.4th 130, 143.)

In addition, an application for relief under this section

“shall be accompanied by a copy of the answer or other pleading proposed to be filed herein, otherwise the application shall not be granted.” (Code Civ. Proc. § 473(b).) Relief under this section is mandatory when based on an attorney affidavit of fault; otherwise, it is discretionary. (Ibid.)

2.

Code of Civil Procedure § 128

Code of Civil Procedure § 128(a)(8)

provides that every Court has the power “to amend and control its process and orders so as to make them conform to law and justice.” (Code Civ. Proc. § 128(a)(8).)

B.

Discussion

Pursuant to Code of Civil Procedure

§ 473(b), Jiminez moves the Court to set aside the January 29, 2026 Order granting Defendants' MSJ/MSA. Defendants oppose, arguing that Jiminez: (1) has not established excusable neglect; (2) failed to act within a reasonable time; (3) fails to show that granting the requested relief would change the result; and (4) seeks to set aside a nonexistent "judgment" and "default."

First, the Court notes that Jiminez's motion fails to set forth how any of the facts contained in the declaration attached to the motion amount to good cause to set aside the January 29 Order. Jiminez's motion sets forth a litany of legal citations and references fraud, excusable neglect, inadvertence, and deprivation of a fair trial, but fails to connect the facts of this matter to those references.

"[F]ailure to offer reasoned analysis of [an] issue constitutes a waiver." (Trinity Risk Management, LLC v. Simplified Labor Staffing Solutions, Inc. (2021) 59 Cal.App.5th 995, 1009; see also Allen v. City of Sacramento (2015) 234 Cal.App.4th 41, 52 ("[C]iting cases or statutes without any discussion of their application to the present case results in forfeiture").)

Second, mandatory relief pursuant to Section 473(b) is limited to setting aside "any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client." (Code Civ. Proc. § 473(b).) The mandatory provision of Section 473(b) is narrower than the discretionary provision "insofar as it is only available for defaults, default judgments, and dismissals, while discretionary relief is available for a broader array of orders." (Martin Potts & Associates, Inc. v. Corsair, LLC (2016) 244 Cal.App.4th 432, 438; accord Prieto v. Loyola Marymount University (2005) 132 Cal.App.4th 290, 295 (In the context of a request for relief pursuant to Section 473(b) from an order on a motion for summary judgment, holding that "[t]he mandatory provision of section 473(b) only empowers a court to set aside a default judgment or a dismissal") see also Henderson v. Pacific Gas & Electric Co. (2010) 187 Cal.App.4th 215.) Jiminez's motion seeks an order setting aside the Court's ruling on a duly noticed motion; the January 29 Order is not a default or dismissal that may be set aside pursuant to the mandatory provisions of Code of Civil Procedure § 473(b).

Finally, to the extent Jiminez seeks discretionary relief pursuant to Code of Civil Procedure § 473(b) or § 128, the Court does not find discretionary relief is warranted.

Defendants' MSJ/MSA was filed on July 24, 2025 with an initial hearing date of October 14, 2025. (See MSJ/MSA, filed 7/24/25.) Based upon that initial hearing date, Plaintiffs' Opposition to Defendants' MSJ/MSA was due 20 days prior to October 14, 2025, or by September 24, 2025. (See Code Civ. Proc. § 437c(b)(2) ("An opposition to the motion shall be served and filed not less than 20 days preceding the noticed or continued date of hearing, unless the court for good cause orders otherwise").)

As was noted previously, on September 23, 2025, the Court granted Gomez's motion to be relieved as counsel. (See Minute Order, 9/23/25.) Jiminez appeared personally at the September 23, 2025 hearing and was assisted by the Court's Spanish Language Interpreter. (Id.) Recognizing that Plaintiffs' counsel was being relieved one day prior to Plaintiff's opposition being due, the Court on its own motion continued Defendants' MSJ/MSA to January 29, 2026 and continued trial as well. (Id.)

Jiminez also appeared at the January 29, 2026 hearing on Defendants' MSJ/MSA and was again assisted by the Court's Spanish Language Interpreter. (See Minute Order, 1/29/26.) Although Jiminez was aware that the hearing on Defendants' MSJ/MSA had been continued to allow time for him to retain an attorney and file an opposition, Jiminez had not retained an attorney and/or filed an opposition prior to the January 29, 2026 hearing.

Taking the above into account, the Court does not find any inadvertence, surprise, or excusable neglect warranting discretionary relief. Jiminez was represented by counsel when the MSJ/MSA was served and, upon relieving Jiminez's counsel, the Court on its own motion continued the hearing on the MSJ/MSA to ensure that Jiminez would have the opportunity to oppose. Jiminez was present at the hearing relieving his counsel and at the MSJ/MSA hearing, both times assisted by the Court's Spanish Language Interpreter. The Court does not find that Jiminez was unaware of the proceedings or the need to respond to Defendants' motion and the Court does not find that Jiminez did not have the proper time to retain counsel.

III.

CONCLUSION

Plaintiff's Motion to Set Aside the
Judgment is DENIED.

[1] Jiminez also references the power
of the Court to set aside judgments in a limited civil case. (See Mot., p. 4:7-9.)
This is not a limited civil case and, accordingly, the Court does not address
Jiminez's citations regarding limited civil matters.